

# **Smt Mamatha W/O H S Harish vs Sri H S Harish S/O Late Subbarao H N on 27 May, 2011**

**Author: A.N.Venugopala Gowda**

**Bench: A.N.Venugopala Gowda**

IN THE HIGH COURT OF KARNATAKA AT BANGALORE  
DATED THIS THE 27" DAY OF MAY, 2011  
BEFORE  
THE HON'BLE MR. JUSTICE A.N. VENUGOPALA GOWDA |

CIVIL PETITION NO.12/2011

BETWEEN:

Smt. Mamatha,

W/o. H.S.Harish,

D/o. G.K.Venkatesh, 7

Age: 29 years, R/o No.45;..

10° Main, 6" Cross, .

Gururaja Layout, 4'" Phase; \_

7 Block, Banashankari 3° Stage,

Bangalore - 560.085...

a ... PETITIONER

(By Sri G.S.Balagangadhar, Adv.) 7

AND: os oo

SriH.S.Harish,

S/o. late Subbarao H.N.,

Age: 37 years,

a R/o.. "Sri Krishna Nilaya",

5" Main, Jayanagar West,

Tumkur. oe

(By Sri B Prain Kumar, Adv.)

: ... RESPONDENT

"This civil petition is filed under Section 24 of CPC

-. praying for the reasons stated therein, that this Hon'ble

"Court may be pleased to withdraw the case bearing

-No.126/2010 from the file of the Civil Judge (Sr.Dn.),  
~ Tumkur and to transfer the same to the Family Court,

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Bangalore for trial and disposal in the interest of justice  
and equity.

This petition coming on for admission, the Court  
made the following:

ORDER

Marriage of the petitioner and the respondent. "took place on 9.2.2007 as per Hindu Rites and Customs: Out of :

the wedlock, a male child. was 1s born one ne Differences having arisen between 'the  
partie the petitioner having withdrawn from. the: company of the respondent,  
M.C.3291/2009 was filed by the respondent against the petitioner in the Family  
Court at Bangalore for restitution of conjugal rights, . The said petition having been  
withdrawn, the "espon dent has filed a petition against the petitioner under Section  
13(1)(ia) and (ib) of the Hindu Marriage Act ih the Court of Civil Judge (Sr.Dn.) 7  
Tumkur which has been registered as M.C.126/2010.

Froth the 'averments made in the said petition, copy of whicht: is at .Anriexure-B, it is clear that, the  
respondent has also filed G & WC 281/2009 in the Family Court at me Bangalore. This petition has  
been filed to withdraw the Jos case in MC 126/2010 pending on the file of the Civil Judge we  
(Sr.Dn.) Tumkur and to transfer the same to the Family | a » Court at Bangalore for trial and  
disposal. The ground on which the petition has been based is that, the petitioner being a lady is  
unable to travel all the way to Tumkur and that in order to harass her, the petition has beer filed ia  
the Court of the Civil Judge (Sr.Dn.), Tumkur. It has been = stated that, she is living at the meicy of  
her parents and, ; since she is insecure and if she is allowed to travel from Bangalore to Tumkur,  
there will be attempt: ori wer life and limb and there is danger to her life. Tt has been further stated  
that she has no independent means to finance the litigation or fight litigation at Tumkur Court and  
she being a lady cannot: travel alone at ail times to Tumkur Court and she requires assistance and it  
is very difficult for her to take her parents, who are -ayed sufficiently and she is devoid of any fale  
support. The respondent has not filed ; : any statement of objections to this petition.

2 In "-M.C.126/2010, the petitioner therein (the . "Respondent herein) has stated that he is employed in a "private: Company in Bangalore but his residence is in Tumkur and he travels to and fro from Bangalore to

- Tumkur every day. That apart, the pendency of G& WC WL 281/2009 in the Family Court at Bangalore has also been admitted. M.C.3291/2009 filed in the Family Court at Bangalore was subsequently withdrawn.

3. In NANDA KISHORI VS. S.B. SHIVAPRAKASH. (ark -

1993 KARNATAKA, 87) this Court has held as follows:

"Wherever Courts are called upon: to consider the plea of transfer in matrimonial matters Courts have to take into consideration the economic soundness of either of the parties: the social strata of the spouses and the behavioural. pattern of their-standard of life antecedent to marriage and. subsequent thereon and after the shape. of. the knot \_which resulted in Marriage, the circumstances of either of the parties in "eking" out their' ; livelihood and under whose protective umbrella they are seeking their sustenance of life. (Whether the suit was filed by husband for. dissolution of marriage in the Family 'Court. at the place, the transfer of suit to the place "where: wife 'was leading life of destitute with aged 7 Parents:'s permissible."

4. Keeping in view the fact that the respondent

- : though. a resident of Tumkur and on account of his o 'employment in a private Company at Bangalore, he travels 7 "everyday to Bangalore and there is also a case pending at | Bangalore in G & WC 281/2009, it would not cause any prejudice to the respondent by withdrawing M.C.126/2010 from the file of the Civil Judge (Sr.Dn.) Tumkur for being tried and decided by the Family Court at Bangalore. taking into consideration the facts and oie of the case, in my opinion, in the ends. of; Justice: 'this petition deserves to be allowed. The same is 'allowed and M.C.126/2010 pending on 'the file of the Civil Judge (Sr.Dn.) Tumkur, is hereby withdrawn and transferred to the Family Court at Bangalore for trial and disposal. The Civil Judge- (Sr. Dn., ie Tumkur to immediately transmit the records of M. C. 126/2010 to the Family Court at Bangalore for decision in - accordance with law. 'No costs. a Sd/-

JUDGE